



File No.: EXP202209907

SANCTIONING PROCEDURE RESOLUTION

From the procedure instructed by the Spanish Agency for the Protection of Data and based on the following

BACKGROUND

FIRST: On 31/08/2022, a written complaint was submitted to this Agency by A.A.A. (hereinafter, the complainant), in which a complaint is made against B.B.B. with NIF ***NIF.1 (hereinafter, the respondent), regarding the installation of a video surveillance system at ***ADDRESS.1, with indications of a possible violation of the provisions of personal data protection regulations.

The reasons supporting the complaint are as follows:

"I request the review of three security cameras placed by my neighbors at ***ADDRESS.1, B.B.B. and C.C.C. The cameras have no signage authorizing them and are focused on my house and a pathway to a common fountain (...)".

A photographic report of two video surveillance cameras placed at the top of a pole is attached.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), on 22/09/2022, the complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in the data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was recorded on 30/09/2022 as evidenced by the acknowledgment of receipt in the file.

No response has been received to this forwarding letter.

THIRD: On 21/11/2022, in accordance with Article 65 of the LOPDGDD, the complaint submitted by the complainant was admitted for processing.

FOURTH: On 30/01/2023, the Director of the Spanish Agency for the Protection of Data decided to initiate sanctioning proceedings against the respondent, in accordance with the provisions of Articles 63 and 64 of the LPACAP, for the alleged violations of Articles 5.1.c) and 13 of Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data (hereinafter, GDPR), classified in Article 83.5.a) and b) of the GDPR.

The initiation agreement was notified to the respondent by means of an announcement published in the Official State Gazette on 21/02/2023; after the notification attempt made via postal mail on 13/02/2023 was "Returned to Sender due to Incorrect Address." After the deadline for submitting allegations had passed, this Agency received no allegations from the respondent.

FIFTH: On 05/04/2023, the instructing body prepared a resolution proposal in which it was proposed to sanction the respondent with a fine of €300 for each of the violations of Articles 5.1) and 13 of the GDPR, classified in Article 83.5.a) and b) of the GDPR.

Additionally, in accordance with Article 58.2.d) of the GDPR, it proposed ordering the respondent to, within ten working days from the date on which the resolution in this regard is notified to them, prove that they have proceeded to remove the cameras from their current location or to regularize them in accordance with current regulations; as well as to place the informative sign in the monitored areas and to keep the information referred to in Articles 13 and 14 of the GDPR available to the affected parties.

The resolution proposal was notified to the respondent on 14/04/2023, as evidenced by the acknowledgment of receipt in the file.

On 14/04/2023, a written allegation was received from the respondent in which they stated that "the cameras comply with current regulations in the domestic sphere, are located in the private space of the home and property, and do not infringe on the privacy of individuals at any time, and that there is no public pathway, so I understand that it is not mandatory to place any sign." A photographic report of the

images from the monitor, dated 20/10/2022, and of two white devices placed at the top of a pole is attached.

In view of all that has transpired, the Spanish Agency for the Protection of Data considers the following facts to be proven in the present procedure,

PROVEN FACTS

FIRST: Existence of 2 white video surveillance cameras at the top of a pole located at ***ADDRESS.1. This fact is proven by the photographic report provided by both the complainant and the respondent.

SECOND: The images from the monitor, dated 20/10/2022, provided by the respondent prove that both devices have privacy masks that limit their capture to the private space of the respondent.

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THIRD: The presence of informational signs indicating a video surveillance area is not observed, which should inform about the presence of the devices and the identity of the data controller, so that interested parties can exercise the rights provided for in Articles 15 to 22 of the GDPR.

FOURTH: The main responsible for the video surveillance system is identified as B.B.B. with NIF ***NIF.1.

LEGAL GROUNDS

I

Competence and applicable regulations

In accordance with the powers granted to each supervisory authority by Article 58.2 of the GDPR, and as established in Articles 47, 48.1, 64.2, and 68.1 of the LOPDGDD, the Director of the Spanish Data Protection Agency is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Data Protection Agency shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Image is a personal data

The physical image of a person, according to Article 4.1 of the GDPR, is personal data and its protection is therefore subject to this Regulation. Article 4.2 of the GDPR defines the concept of "processing" of personal data.

Images generated by a system of cameras or video cameras are personal data, and their processing is subject to data protection regulations.

III

Data minimization

Article 5.1.c) of the GDPR states the following:

"1. Personal data shall be:

(...)

c) adequate, relevant and limited to what is necessary in relation to the purposes for which they are processed ('data minimization')"

Regarding processing for video surveillance purposes, Article 22 of the LOPDGDD establishes that natural or legal persons, public or private, may carry out the processing of images through camera or video camera systems for the purpose of preserving the safety of persons and property, as well as their facilities. However, capturing images of public spaces is only permitted to the extent that it is essential for the aforementioned purpose.

Under no circumstances will the use of surveillance practices beyond the environment subject to the installation be allowed, and in particular, it must not affect surrounding public spaces, adjacent buildings, and vehicles other than those accessing the monitored space.

The installed cameras cannot capture images of private spaces belonging to third parties and/or public spaces without a duly justified cause, nor can they affect the privacy of passersby freely moving through the area.

IV

Transparency of personal data processing

Article 5 of the GDPR "Principles relating to processing" indicates that:

"1. Personal data shall be:

a) processed lawfully, fairly and in a transparent manner in relation to the data subject ('lawfulness, fairness and transparency')."

This principle is developed in Article 12 of the GDPR, and depending on whether the personal data is obtained from the data subject or not, the information that must be provided is listed in Articles 13 or 14 of the GDPR.

Regarding processing for video surveillance purposes, Article 22.4 of the LOPDGDD provides that:

"The information duty provided for in Article 12 of Regulation (EU) 2016/679 shall be deemed fulfilled by placing an informational device in a sufficiently visible location identifying, at least, the existence of the processing, the identity of the controller, and the possibility of exercising the rights provided for in Articles 15 to 22 of Regulation (EU) 2016/679. An access code or internet address to this information may also be included in the informational device."

V

Claims made

Regarding the claims presented by the respondent against the proposed resolution of this sanctioning procedure, the following considerations must be made.

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1. The respondent claims that the cameras comply with current regulations regarding the protection of personal data, as they are located in their private residential space and property.

Based on the images from the monitor dated 20/10/2022, it is proven that the two surveillance cameras have privacy masks, which limit their capture to private areas of the respondent (property). In none of the images is the residence of the claimant visible, nor what is referred to as the "pathway."

For the reasons stated, the claim is upheld, and the alleged infringement under Article 5.1.c) of the GDPR is archived.

2. The respondent claims that they are not required to install informative signs for the monitored area, as there is no public pathway.

In this case, since the surveillance system has been installed in a domestic setting, there is indeed no "data processing" of the claimant or third parties. Therefore, the presence of an informative sign for the monitored area is not necessary.

Consequently, the claim made is accepted, and the alleged infringement under Article 13 of the GDPR is archived.

It should be noted that "The interested parties shall be responsible for the veracity of the documents they present," in accordance with Article 28.7 of the LPACAP.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been established,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO ORDER the ARCHIVING of the present sanctioning procedure against B.B.B., with NIF ***NIF.1, as the commission of the infringements of Articles 5.1.c) and 13 of the GDPR has not been proven.

SECOND: TO NOTIFY this resolution to B.B.B., with NIF ***NIF.1.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Administrative Court of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file an administrative contentious appeal.

If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the administrative contentious appeal. If the Agency does not become aware of the filing of the administrative contentious appeal within two months from the day following the notification of this resolution, the provisional suspension would be considered terminated.

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